

25STCV18365 25STCV18365

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-06

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Case Number: 25STCV18365 Hearing Date: August 6, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 6, 2026

Case Name: Jackson v. Custis, et al.

Case No.: 25STCV18365

Matter: Motion to Compel Compliance

Moving Party: Defendant Custis Law, P.C

Responding Party: Non-party Rachel Goldberg Individual and Family Therapy

Notice: OK

Ruling: The Motion to Compel is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On December 5, 2025, Plaintiff Nina Jackson, a pro per litigant, filed the operative Second Amended Complaint ("SAC") for (1) legal malpractice, (2) breach of fiduciary duty, (3) constructive fraud, and (4) fraudulent misrepresentation.

On March 2, 2026, the Court granted Custis Law, P.C.'s motion to compel further responses to its requests for production, set one, nos. 1, 4, 5, 7, 8, 9, 10, 14, 17, 18, 19, 21, 22, 25-29, 32-44 from Jackson. The Court stated, "The subject discovery appropriately seeks information as to Quantum's underlying liability and Plaintiff's damages and mitigation of damages. Jackson's objections lack merit; Jackson fails to understand that she waived her privacy and privilege rights for the subject information when she filed a malpractice claim."

Defendant now seeks to compel non-party Rachel Goldberg Individual and Family Therapy to comply with a business record subpoena seeking Plaintiff's psychological records.

Goldberg Therapy objected to the subpoena pursuant to Evidence Code § 1015, asserting the psychotherapist-patient privilege on behalf of Plaintiff in the absence of a signed written authorization or court order.

Plaintiff's allegations extend beyond simple "garden-variety" emotional distress. She explicitly claims severe anxiety, depression, sleep disruption, and functional impairment resulting from Defendants' conduct. As such, Defendants are entitled to discover contemporaneous treatment records to evaluate causation, severity, and potential alternative stressors. The Court has already ruled that such records are discoverable.

Therefore, the Motion to Compel is granted. The documents should be produced within 30 days.

Plaintiff is sanctioned \$1,079.77, payable within 30 days.

Moving party to give notice.